

Per the above, Plaintiff sufficiently states causes of action for breach of fiduciary duty and negligence only via reference to the facts regarding the Ceres Property. Though the court finds the allegations support Defendant owing Virginia Fisher a fiduciary duty as to the Fulton Property, Plaintiff lacks standing to bring a derivative action regarding the Fulton Property. Plaintiff's allegations regarding the Modesto, Lompoc, Walmart, and Fulton Properties are superfluous and appropriately struck.

Conclusion. Defendant's demurrer is overruled. Defendant's motion to strike is granted as follows: the factual allegations concerning the Modesto, Lompoc, Walmart, and Fulton Properties (paragraphs 11 to 36 and 51 to 56) are struck. Plaintiff is granted leave to amend. Plaintiff is to file an amended complaint within 30 days of this hearing date.

MICHAEL G. JONES vs. KAISER FOUNDATION HOSPITALS; ET AL.
Case No. CU25-06194

Defendant KASIER FOUNDATION HOSPITALS Motion to Compel Deposition and Request for Sanctions

TENTATIVE RULING

The hearing on Defendant Kaiser's motion to compel Plaintiff's deposition and the case management conference are continued to July 10, 2026 at 9:00 a.m. If Plaintiff appears for the second day of deposition by June 23, 2026, Defendant Kaiser is to notify the court and opposing counsel of their withdrawal of the motion to compel Plaintiff's deposition.

Even if Defendant withdraws their motion, the matter will remain on calendar for CMC on July 10, 2026. CMC statements are due five court days before the hearing date.

PANKAJ SHARMA vs. PAUL SUNAK
Case No. FCS055977

Motion to Compel Further Responses to Discovery

TENTATIVE RULING

Motion to Compel Further Responses

Plaintiffs' motion to compel further responses to their first sets of form and special interrogatories, requests for production of documents, and requests for admission is denied without prejudice.

Plaintiffs' meet and confer declaration does not "state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented" (Code Civ. Proc. § 2016.040) and fails to establish that counsel engaged in a "serious effort at negotiation